

FLEZEN DMCA COPYRIGHT POLICY

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Flezen ("Company," "we," "us," or "our") respects the intellectual property rights of others and expects our users to do the same. This DMCA Copyright Policy explains how Flezen responds to claims of copyright infringement on our services, client software, and websites (collectively, the "Services") in accordance with the Digital Millennium Copyright Act ("DMCA") and applicable copyright laws.

1. COPYRIGHT INFRINGEMENT POLICY

1.1 Our Commitment

Flezen takes copyright infringement seriously and will respond promptly to valid notices of alleged copyright infringement. We reserve the right to:

- Remove or disable access to allegedly infringing content
- Terminate the accounts of repeat infringers
- Take appropriate legal action when necessary

1.2 Scope of Policy

This policy applies to all content uploaded, stored, or shared through the Services, including:

- Files, documents, images, videos, and audio
- User-generated content
- Shared folders and links
- Any other materials accessible through the Services

1.3 No Obligation to Monitor

Flezen is not obligated to monitor content uploaded by users. However, we will investigate and take action upon receiving valid copyright infringement notices.

2. FILING A DMCA TAKEDOWN NOTICE

2.1 Who Can File

You may file a DMCA takedown notice if you are:

- The copyright owner of the allegedly infringed work
- An agent authorized to act on behalf of the copyright owner
- A person authorized to act under an exclusive right under copyright

2.2 Required Information

To file a valid DMCA takedown notice, you must provide the following information in writing:

A. Identification of the Copyrighted Work:

- A description of the copyrighted work that you claim has been infringed
- If multiple copyrighted works are covered by a single notification, provide a representative list of such works

B. Identification of the Infringing Material:

- A description of the material that you claim is infringing or is the subject of infringing activity
- Information reasonably sufficient to permit us to locate the material, including:
 - Specific URL(s) of the allegedly infringing content on Flezen
 - File name(s) if known
 - Folder or account information if applicable
 - Any other identifying information

C. Your Contact Information:

- Your full legal name (individual or organization)
- Telephone number
- Email address
- Company affiliation (if applicable)

D. Good Faith Statement: A statement that you have a good faith belief that use of the material in the manner complained of is not authorized by:

- The copyright owner
- The copyright owner's agent, or
- The law

E. Accuracy Statement: A statement that the information in the notification is accurate, and under penalty of perjury, that you are authorized to act on behalf of the owner of an exclusive right that is allegedly infringed.

F. Physical or Electronic Signature:

- Your physical signature, or
- An electronic signature (typed full legal name)

2.3 Where to Send Your Notice

Please send your complete DMCA takedown notice to:

Email: dmca@flezen.com

Subject Line: DMCA Takedown Notice

2.4 Processing Time

Upon receipt of a valid DMCA takedown notice:

- We will acknowledge receipt within 2-3 business days
- We will review and process the notice within 5-7 business days
- We will take appropriate action, which may include removing or disabling access to the allegedly infringing content

2.5 Notification to User

If we remove or disable access to content in response to a DMCA notice, we will make reasonable efforts to notify the user who uploaded the content, unless:

- We are legally prohibited from doing so
- The notification would compromise an ongoing investigation
- The content is clearly illegal (child abuse imagery, malware, etc.)

3. FILING A DMCA COUNTER-NOTICE

3.1 When to File a Counter-Notice

If you believe that content you uploaded was removed or disabled by mistake or misidentification, you may file a DMCA counter-notice.

3.2 Required Information

A valid DMCA counter-notice must include the following information:

A. Your Contact Information:

- Your full legal name
- Telephone number
- Email address

B. Identification of Removed Content:

- Description of the content that was removed or disabled
- The location where the content appeared before it was removed or disabled (URL, file name, folder path, etc.)

C. Good Faith Statement: A statement under penalty of perjury that you have a good faith belief that the content was removed or disabled as a result of:

- Mistake, or
- Misidentification of the content

D. Consent to Jurisdiction: A statement that you consent to the jurisdiction of:

- The Federal District Court for the judicial district in which your address is located (if in the United States), or
- The courts of India (if outside the United States)

E. Consent to Service of Process: A statement that you will accept service of process from:

- The person who provided the original DMCA takedown notice, or
- An agent of such person

F. Physical or Electronic Signature:

- Your physical signature, or
- An electronic signature (typed full legal name)

3.3 Where to Send Your Counter-Notice

Please send your complete DMCA counter-notice to:

Email: dmca@flezen.com

Subject Line: DMCA Counter-Notice

3.4 What Happens After You File

Upon receipt of a valid counter-notice:

Step 1 - Acknowledgment (2-3 business days): We will acknowledge receipt of your counter-notice.

Step 2 - Forward to Complainant (5-7 business days): We will forward a copy of your counter-notice to the person who filed the original DMCA takedown notice.

Step 3 - Waiting Period (10-14 business days): We will wait 10-14 business days to see if the original complainant files a legal action (lawsuit) seeking a court order to restrain you from engaging in infringing activity.

Step 4 - Restoration (If No Legal Action): If we do not receive notice that the original complainant has filed legal action within 10-14 business days, we may restore or cease disabling access to the content that was removed.

Step 5 - Continued Removal (If Legal Action Filed): If the original complainant files legal action and provides us with proof, the content will remain removed or disabled pending resolution of the legal matter.

3.5 Important Warnings

False Counter-Notices: Filing a false or fraudulent counter-notice may result in:

- Legal liability for damages
- Attorney's fees and costs
- Termination of your Flezen account
- Potential criminal prosecution for perjury

Consider Legal Advice: Before filing a counter-notice, you may wish to consult with an attorney to understand your rights and potential liabilities.

4. REPEAT INFRINGER POLICY

4.1 Three-Strike Policy

Flezen operates a repeat infringer policy to address users who repeatedly violate copyright:

First Violation:

- Content removed
- Warning sent to user
- Account remains active

Second Violation:

- Content removed
- Account can get temporarily suspended for 7 days
- Final warning issued

Third Violation:

- Content removed
- Account permanently terminated

- All data deleted
- No refunds or withdrawals will be issued

4.2 What Counts as a Violation

A violation is counted when:

- A valid DMCA takedown notice is received
- The allegedly infringing content is removed or disabled
- No valid counter-notice is filed, or
- A counter-notice is filed but the complainant pursues legal action

4.3 Violation Reset

Violations do not expire. However, we may, in our sole discretion, reset the violation count if:

- More than 2 years have passed since the last violation
- The user demonstrates good faith compliance with copyright laws
- The previous violations were determined to be erroneous

4.4 Immediate Termination

We reserve the right to immediately terminate accounts without prior warnings if:

- The infringement is particularly egregious (large-scale piracy, commercial infringement)
- The account is being used primarily for infringing purposes
- The user has a history of filing false counter-notices
- Required by law or court order

5. WHAT IS NOT COPYRIGHT INFRINGEMENT

The following are generally NOT copyright infringement:

5.1 Fair Use

Fair use may permit use of copyrighted material without permission for purposes such as:

- Criticism and commentary
- News reporting
- Teaching and education
- Research and scholarship
- Parody

Note: Whether something qualifies as fair use is determined by courts on a case-by-case basis. We cannot determine if your use constitutes fair use.

5.2 Public Domain

Works in the public domain are not protected by copyright and can be used freely:

- Works with expired copyrights (generally, works published before 1928 in the U.S.)
- Works created by the U.S. federal government
- Works explicitly dedicated to the public domain by their creators

5.3 Licensed Content

Content you have permission to use through:

- Creative Commons licenses
- Purchased licenses or subscriptions
- Express written permission from the copyright holder

5.4 Your Own Original Content

Content that you created entirely yourself and that does not incorporate copyrighted works of others.

6. PROTECTING YOUR CONTENT

6.1 Content You Upload

When you upload content to Flezen:

- You retain all copyright and ownership rights to your content
- You grant Flezen only the limited rights necessary to provide the Services (as described in our Terms of Service)
- You can control who has access to your content through privacy and sharing settings

6.2 How to Report Infringement of Your Content

If someone has uploaded your copyrighted content to Flezen without permission:

- Follow the procedures in Section 2 (Filing a DMCA Takedown Notice)
- Provide as much identifying information as possible
- Include proof of your copyright ownership (registration certificate, publication records, etc.)

6.3 Preventing Unauthorized Sharing

To protect your content from unauthorized sharing:

- Use strong passwords and enable two-factor authentication
- Be cautious about who you share content with
- Use password-protected sharing links when appropriate
- Regularly review your sharing settings
- Do not share your account credentials with others

7. COPYRIGHT EDUCATION

7.1 What is Copyright?

Copyright is a form of intellectual property protection that grants the creator of an original work exclusive rights to:

- Reproduce the work
- Distribute copies
- Create derivative works
- Publicly display or perform the work

7.2 What is Protected by Copyright?

Copyright protects original works of authorship, including:

- Literary works (books, articles, blog posts)
- Musical works and sound recordings
- Dramatic works and performances
- Choreographic works
- Visual arts (paintings, photographs, graphics)
- Audiovisual works (movies, TV shows, videos)
- Architectural works
- Software and code

7.3 What is NOT Protected by Copyright?

Copyright does NOT protect:

- Ideas, concepts, or procedures
- Facts and data
- Titles, names, and short phrases (may be protected by trademark)
- Works in the public domain

7.4 When Copyright Begins

Copyright protection begins automatically when:

- An original work is fixed in a tangible medium
- No registration or notice is required (though registration provides additional benefits)

7.5 Copyright Duration

In India:

- Copyright generally lasts for the lifetime of the author plus 60 years
- For anonymous works, pseudonymous works, and works made for hire: 60 years from publication
- For cinematograph films and sound recordings: 60 years from publication

Copyright duration varies by country and type of work.

8. MISREPRESENTATION AND ABUSE

8.1 False DMCA Notices

Filing a false or fraudulent DMCA takedown notice may result in:

- Legal liability under Section 512(f) of the DMCA for damages, attorney's fees, and costs
- Being banned from filing future DMCA notices with Flezen
- Reporting to appropriate authorities
- Legal action by affected users

8.2 False Counter-Notices

Filing a false or fraudulent counter-notice may result in:

- Legal liability for damages and attorney's fees
- Termination of your Flezen account
- Potential criminal prosecution for perjury
- Being barred from filing future counter-notices

8.3 Abusive Reporting

Repeatedly filing invalid or abusive copyright complaints may result in:

- Suspension of your ability to file DMCA notices
- Termination of any Flezen account you may hold
- Reporting to appropriate authorities

8.4 Material Misrepresentation

Under the DMCA, you may be liable for damages if you knowingly materially misrepresent that:

- Material or activity is infringing, or
- Material or activity was removed or disabled by mistake or misidentification

9. LIMITATIONS AND DISCLAIMERS

9.1 No Legal Advice

This policy provides general information about Flezen's DMCA procedures. It does not constitute legal advice. If you have questions about your rights or obligations under copyright law, please consult with an attorney.

9.2 No Guarantee of Removal

While we respond promptly to valid DMCA notices, we do not guarantee:

- Removal of all allegedly infringing content
- That removed content will not reappear
- That users will not re-upload infringing content

9.3 Not a Copyright Determination

Flezen does not make determinations about:

- Whether content actually infringes copyright
- Whether a use constitutes fair use
- Ownership of copyright in disputed works

These are legal questions that may only be resolved by courts.

9.4 Independent Investigation

We reserve the right to independently investigate potential copyright infringement even without receiving a formal DMCA notice.

9.5 Cooperation with Authorities

We cooperate fully with law enforcement and regulatory authorities investigating copyright infringement and may disclose user information when legally required to do so.

10. MODIFICATIONS TO THIS POLICY

10.1 Right to Modify

We may update this DMCA Copyright Policy from time to time to reflect changes in:

- Legal requirements
- Our procedures and practices
- The Services we offer

10.2 Notice of Changes

We will notify users of material changes to this policy by:

- Posting the updated policy on our website
- Updating the "Last Updated" date at the top of this policy
- Sending notice to your email address (for significant changes)

10.3 Effective Date

Changes become effective on the date specified in the updated policy. Your continued use of the Services after changes become effective constitutes acceptance of the updated policy.

11. CONTACT INFORMATION

11.1 Copyright Inquiries

For questions about this DMCA Copyright Policy or copyright issues:

Email: dmca@flezen.com

Subject Line: Copyright Inquiry

11.2 DMCA Notices

To file a DMCA takedown notice or counter-notice:

Email: dmca@flezen.com

Subject Line: DMCA Takedown Notice OR DMCA Counter-Notice

11.3 General Support

For non-copyright related issues:

Email: support@flezen.com

11.4 Response Time

We will acknowledge receipt of DMCA notices and counter-notices within 2-3 business days and process them within 5-7 business days.

12. IMPORTANT REMINDERS

12.1 Before Filing a Takedown Notice

- Ensure you own the copyright or are authorized to act on behalf of the copyright owner
- Verify that the use is not authorized (check for licenses, fair use, public domain)
- Locate the specific URLs or file locations of the allegedly infringing content
- Include all required information listed in Section 2.2
- Sign your notice (physical or electronic signature)
- Understand that you may be liable for damages if you misrepresent that content is infringing

12.2 Before Filing a Counter-Notice

- Ensure you have a good faith belief that the content was removed by mistake or misidentification
- Understand that you consent to jurisdiction of courts
- Understand that you consent to accept service of process from the complainant
- Include all required information listed in Section 3.2
- Sign your counter-notice (physical or electronic signature)
- Consider consulting an attorney before filing
- Understand that you may face legal action from the original complainant

12.3 For All Users

- Respect copyright laws and the rights of copyright owners
- Only upload content that you have created yourself or have permission to use
- Understand that copyright infringement can result in account termination
- Be aware that repeat infringers are subject to permanent account termination
- Review our Terms of Service and Privacy Policy for additional information

13. SUPPLEMENTARY PROVISIONS

13.1 Designated Copyright Agent

Flezen's designated agent for receiving DMCA notices under the DMCA is:

Agent: Flezen Copyright Team

Email: dmca@flezen.com

13.2 Indian Copyright Act Compliance

In addition to complying with the DMCA, Flezen also complies with the Copyright Act, 1957 (India) and related regulations. Copyright owners may also pursue remedies under Indian copyright law.

13.3 International Copyright

Flezen respects international copyright laws and treaties. Copyright owners from any country may file DMCA notices for content accessible through our Services.

13.4 Expedited Removal

In cases of clear and egregious copyright infringement, Flezen may remove content immediately without waiting for the standard processing period.

14. DEFINITIONS

Copyright: Legal right that grants the creator of an original work exclusive rights to its use and distribution.

DMCA: Digital Millennium Copyright Act, a United States copyright law that implements two 1996 World Intellectual Property Organization (WIPO) treaties.

Fair Use: A legal doctrine that permits limited use of copyrighted material without permission under certain circumstances.

Infringement: Unauthorized use of copyrighted material that violates the copyright owner's exclusive rights.

Notice: A DMCA takedown notice submitted by a copyright owner claiming infringement.

Counter-Notice: A response filed by a user whose content was removed, claiming the removal was improper.

Repeat Infringer: A user who has received multiple valid copyright infringement notices.

Good Faith: Honest belief or intention, without malice or intent to defraud.

15. ACKNOWLEDGMENT

By using Flezen's Services, you acknowledge that:

- You have read and understood this DMCA Copyright Policy
- You agree to comply with all copyright laws and regulations
- You will not upload, store, or share content that infringes the copyrights of others
- You understand that copyright infringement may result in account termination
- You understand the procedures for filing DMCA notices and counter-notices
- You accept that Flezen will respond to valid DMCA notices by removing or disabling access to allegedly infringing content

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For copyright-related questions, please contact: dmca@flezen.com

For general support: support@flezen.com